



Department of Homeland Security
Office of Inspector General

Justification and Approval for Procurement Action

Instructions: This form shall be completed for all actions over the Micro Purchase Threshold that require a justification for other than full and open competition. All sections must be completed and not left blank. If additional space is needed to complete any sections, use Section 12 on the last page of this form. The program office shall have their designated official sign on the last page. The completed form shall be included as part of the procurement package.

Section 1 - Agency and Contracting Activity

This justification and approval supports the procurement action as described herein. The procurement action will be performed by the Office of Inspector General, Office of Management, Acquisitions Division for the Office of Management.

Section 2 - Nature and/or Description of the Action Being Approved

Project Title (As it will appear in the solicitation and resultant contract/order.)

Caseware IDEA Software and Support

Nature of Approval Request:

- ☒ Other than Full and Open Competition (FAR Part 6, Open Market)
- ☐ Limited Source Justification (FAR Part 8, Federal Supply Schedules)
- ☐ Exception to Fair Opportunity (FAR Part 16, Indefinite-Delivery Indefinite Quantity Contracts)

Section 3 - Description of Supplies/Services and Cost Estimate

Provide a brief narrative description of the project (or modification).

The OIG Office of the Chief Information Officer (OCIO) has a need to acquire CaseWare IDEA software licenses and technical support services. CaseWare IDEA is one of the primary tools used within DHS OIG to perform financial and data analysis audit work. The CaseWare IDEA software will allow DHS OIG users [REDACTED] to import data sets received from multiple sources and perform a full set of analysis activities on that data set. CaseWare IDEA is loaded and installed for the DHS OIG workforce that uses data analytics to review and report on financial audit activities

Identification Number (Specify the requisition number or posed solicitation number.)

REQCIO-25-00-042

Procurement History of the Proposed Action, if any. Provide historical contract data (include contract number, period of performance, contractor, and total award value.)

The OIG's prior IDEA software contract (70VT15-19-P-00002) expired on 9/30/22.

Total Estimated Dollar Value (Inclusive of options which will be evaluated pre-award unless otherwise stated.)

[REDACTED]

Performance/Delivery: The base period of performance is expected to be [REDACTED] through [REDACTED] 6 with 0 option periods.

Section 4 - Authority Cited

The authority permitting A) Other Than Full Open Competition, B) Limited Sources, or C) Exception to Fair Opportunity is indicated below:

A) Open Market Acquisition (FAR Subpart 6.3) - Other than Full and Open Competition

☐	41 USC § 3304 (a)(1), FAR 6.302-1. ONLY ONE RESPONSIBLE SOURCE and no other supplies or services will satisfy agency requirements. This authority includes brand name.
☒	NOTE: FAR 6.302-1(c) Application for brand name descriptions. (1) An acquisition or portion of an acquisition that uses a brand name description or other purchase description to specify a particular brand name, product, or feature of a product, peculiar to one manufacturer - (i) Does not provide for full and open competition, regardless of the number of sources solicited; and (ii) Shall be justified and approved in accordance with 6.303 and 6.301.
☐	41 USC § 3304(a)(2), FAR 6.302-2. UNUSUAL AND COMPELLING URGENCY.
☐	41 USC § 3304(a)(3), FAR 6.302-3. INDUSTRIAL MOBILIZATION; ENGINEERING, DEVELOPMENTAL, OR RESEARCH CAPABILITY; OR EXPERT SERVICES.
☐	41 USC § 3304(a)(4), FAR 6.302-4. INTERNATIONAL AGREEMENT.
☐	41 USC § 3304(a)(5), FAR 6.302-5. AUTHORIZED OR REQUIRED BY STATUTE. Identify statute: _____
☐	41 USC § 3304(a)(6), FAR 6.302-6. NATIONAL SECURITY.
☐	41 USC § 3304(a)(7), FAR 6.302-7. PUBLIC INTEREST (Shall not be used when any other circumstance is applicable. See NOTE under "Approvals").

B) Federal Supply Schedules (FAR Subpart 8.4) - Limited Sources

☐	40 USC § 121(c)(1), FAR 8.405-6(a)(1)(i)(A). An URGENT AND COMPELLING NEED exists, and following the procedures would result in unacceptable delays.
☐	40 USC § 121(c)(1), FAR 8.405-6(a)(1)(i)(B). ONLY ONE SOURCE is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized. <i>Note:</i> FAR 8.405-6(b). Items peculiar to one manufacturer. An item peculiar to one manufacturer can be a particular brand name, product, or a feature of a product, peculiar to one manufacturer. A brand name item, whether available on one or more schedule contracts, is an item peculiar to one manufacturer. (1) Brand name specifications shall not be used unless the particular brand name, product, or feature is essential to the Government's requirements, and market research indicates other companies' similar products, or products lacking the particular feature, do not meet, or cannot be modified to meet, the agency's needs.
☐	40 USC § 121(c)(1), FAR 8.405-6(a)(1)(i)(C). In the interest of economy and efficiency, the new work is a LOGICAL FOLLOW-ON to an original Federal Supply Schedule order provided that the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order BPA must not have been previously issued under sole-source or limited-sources procedures.

C) Indefinite-Delivery Indefinite Quantity (FAR Subpart 16.5) - Exception to Fair Opportunity

☐	41 USC § 4106(c)(1), FAR 16.505(b)(2)(i)(A). The agency need for the supplies or services is so URGENT that providing a fair opportunity would result in unacceptable delays.
☐	41 USC § 4106(c)(2), FAR 16.505(b)(2)(i)(B). ONLY ONE Awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.
☐	41 USC § 4106(c)(3), FAR 16.505(b)(2)(i)(C). The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a LOGICAL FOLLOW-ON to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.
☐	41 USC § 4106(c)(4), FAR 16.505(b)(2)(i)(D). It is necessary to place an order to satisfy a MINIMUM GUARANTEE.
☐	FAR 16.505(b)(2)(i)(E). For orders exceeding the simplified acquisition threshold, a STATUTE expressly authorizes or requires that the purchase be made from a specified source.

Provide rationale that supports the use of the authority cited. If applicable, identify the proposed or potential contractor(s), and include an in-depth discussion for the proposed contractor's unique qualifications for fulfilling the contract requirements. For example, if the authority is FAR 6.302-2, "Unusual and compelling urgency," include the required schedule and lead-time involved along with a discussion of the serious injury to the Government which would result if award of a contract is delayed.

Based on our market research, we determined that only Caseware is able to provide the proprietary software. See section 8.0 below for details.

Describe efforts under this procurement action to ensure offers are solicited from as many potential sources as practicable. Efforts may include industry days, Requests for Information, Sources Sought announcements, etc. Also, describe the extent of competition anticipated for this acquisition (i.e., none, limited, etc.).

In addition, the OIG solicited for the base work requirement to conduct a Financial Statement Audit of DHS.

Pricing was received directly from the vendor, the Government will review previous award to determine price fair and reasonableness.

Section 8 - Market Survey

Describe the market research that was conducted and the results of that effort (see FAR Part 10). Examples of market research include:

- Issuing a Sources Sought announcement in FedBizOpps (FBO);
- Publishing a Request For Information;
- Reviewing literature published by qualified organizations;
- Contacting knowledgeable acquisition and program officials in Government and industry regarding market capabilities; and
- Convening a pre-solicitation conference to exchange information with the marketplace.

If market research was not conducted, provide an explanation. *Note:* Issuing the FBO notice does not, in and of itself, constitute market research.

During February 2025, OIG OCIO submitted two market research requests through the NASA SEWP GWAC portal. During the first request, we did not receive any market research quotes from potential vendors. After receiving no responses, we then submitted a second request which was open to a larger group of potential vendors. However, we did not receive and cost information as some of the vendors indicated that the IDEA software was proprietary and could only be provided by the actual developer (CaseWare).

<https://www.caseware.com/us/products/idea/>

Section 9 - Other Factors Supporting the Use of Other than Full and Open Competition

Cite any other factors not mentioned earlier in the justification as to why the requirement cannot be competed to the fullest extent. Also, if applicable:

- (a) explain why technical data packages, specifications, engineering descriptions, statements of work, or purchase descriptions suitable for full and open competition have not been developed or are not available for a competitive acquisition;
- (b) when the requirement can only be satisfied by one responsible source for a follow-on acquisition [see FAR 6.302-1(a)(2)(ii)], indicate whether there would be (i) unacceptable delays in fulfilling the agency's requirements and/or (ii) duplication of cost by award to another organization and, if so, provide an estimate of the cost duplication and how it was derived;
- (c) if the justification is based on unusual and compelling urgency, indicate (using data, estimated cost, or other rationale) the extent and nature of the harm that the OIG would incur and/or the unacceptable delays that would occur. Also, explain whether the proposed period of performance is the minimum acceptable period necessary to meet mission requirements, including why a shorter period is not advisable. If future extensions are anticipated, indicate what steps will be taken to encourage and solicit competition. *Note:* The length of a contract or order awarded under these circumstances cannot exceed one year unless approved by the Head of the OIG OM Acquisitions Division. Provide the rationale as to the extent and nature of the harm to the Government.

This proprietary software is required by [REDACTED] which is the vendor who will be performing the Congressionally mandated financial audit with OIG staff.

Section 10 - Interested Sources

List the sources, if any, that have expressed an interest, in writing, in the acquisition and provide an explanation of why they are not being considered. If no expressions of interest have been received, enter "No other sources have expressed an interest," in writing, in the proposed acquisition.

Any responses, such as capability statements, received in response to a published notice (e.g., a Sources Sought notice or Request for Information) must be evaluated. Include all responses as an attachment to this Justification and Approval, along with the names of the individuals who participated in a review of those responses and a copy of the communication to each organization that responded. In addition, document any requests made to the CO by interested organizations for a copy of the solicitation or SOW with the following information: (a) the name of and contact information for the organization that submitted the request; (b) any communications with the requestor; and (c) the disposition of the request.

Only Caseware is able to provide the IDEA software and support.

See Section 8.0 above for details.

Section 11 - Proposed Actions the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for the Required Supplies or Services

Provide a brief statement as to whether or not there are future plans to acquire the same type of supplies or services, e.g., further extensions or renewals by competitive or other means. If subsequent acquisitions are anticipated, state the actions taken, or anticipated, to avoid continued noncompetitive acquisition of the requirement and provide a schedule for accomplishing those actions. *Note:* This may involve re-competing a successor requirement at a logical juncture in the phasing of the project or "breaking out" segments of the requirement to facilitate competition, where feasible. If no actions have been or will be undertaken to overcome barriers to competition for future acquisitions, so indicate and provide an explanation.

At this time the Government does not intend procure this software in the future.

Section 12 - Additional Space

N/A

Section 13 - Certification and Approvals

In accordance with the authority(ies) indicated in Section 4 of this document and agency procedures, all justification documents must follow